



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

NOV 19 2004

DOT-E 13055

EXPIRATION DATE: October 31, 2006

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Stenstrom Petroleum Equipment Group
Rockford, IL
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the transportation in commerce of Class 3 liquids in a certain non-DOT specification cargo tank, described as a 330 gallon volumetric prover tank, mounted on a trailer. This exemption provides no relief from the Hazardous Materials Regulation (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.203(a) in that marking the exemption number on shipping papers is not required, § 172.504(a) in that the prover tank need not be placarded, and § 173.242(b) insofar as a non-DOT specification cargo tank motor vehicle is not an authorized package for a Class 3 material.
5. BASIS: This exemption is based on the application of Stenstrom Petroleum Equipment Group dated June 6, 2002, submitted in accordance with § 107.105 and public proceeding thereon.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Gasoline	3	UN1203	II
Diesel fuel	3	NA1993	III

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Prescribed packaging is a certain non-DOT specification 330 gallon cargo tank (volumetric prover tank) mounted on a trailer. The tank was manufactured by Brownie Tank Mfg. Co. of Minneapolis Minn. The maximum pressure during transportation must be less than 2 psig. Pressure relief devices are not required. Internal stop-valves on bottom outlets are not required. Remote closure devices and overturn protection are not required. New construction is not authorized.

b. TESTING - The prover tank must be visually inspected and pressure tested as required by § 180.407(c) for MC-306 Specification cargo tanks.

c. OPERATIONAL CONTROLS -

i. The bumper for the trailer must meet the requirements of §§ 180.405(1)(2) and 393.86.

ii. The cargo tank must be drained of all liquid prior to transportation. Only vapors of petroleum distillates and residue liquids at a pressure of less than 2 psig are authorized as lading in transportation.

8. SPECIAL PROVISIONS:

a. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

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b. MARKING - The cargo tank covered by this exemption must be plainly marked on both sides, in letters at least two inches high on a contrasting background, "DOT-E 13055." The marking requirement of § 172.203(a) is waived.

c. The placarding requirements of Subpart F of Part 172 are waived.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle used to transport hazardous material under this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this exemption must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

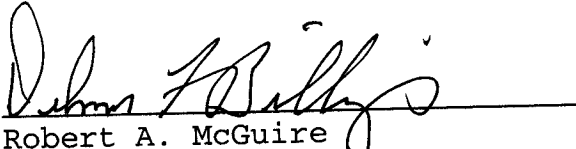
Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable.

(Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



for Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: PTOlson/dl